

Manoranjan Prasad Mandal vs Moni Mandal on 16 July, 2025

Author: Sujit Narayan Prasad

Bench: Sujit Narayan Prasad, Rajesh Kumar

IN THE HIGH COURT OF JHARKHAND AT RANCHI
F.A. No. 250 of 2024

Manoranjan Prasad Mandal ... Appellant
Versus
Moni Mandal ... Respondent

CORAM : HON'BLE MR. JUSTICE SUJIT NARAYAN PRASAD
HON'BLE MR. JUSTICE RAJESH KUMAR

For the Appellant : Mrs. Shilpi Sandil Gadodia, Advocate
: Mr. Prakhar Harit, Advocate
For the Respondent : Mr. Shailesh Kumar Singh, Advocate

06/Dated: 16 July, 2025
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Per Sujit Narayan Prasad, J.:

I.A. No. 9289 of 2025:

1. The instant interlocutory application has been filed for challenging the defect No. 2 pointed out by the Office regarding the issue of limitation.

2. It has been contended that the Office has pointed out the delay of 27 days, counting it in view of the provision of Section 19(3) of the Family Courts Act wherein the limitation has been provided of 30 days in filing an appeal against the decree/judgment passed by the learned Family Judge, but as per the judgment dated 16.12.2020 passed by the Co-ordinate Division Bench of this Court in the case of Dr. Pankaj Kumar V. Prerna in First Appeal No. 49 of 2019 wherein it has been held that the period of limitation of 90 days is to be taken into consideration in view of the amendment incorporated under Section 28(4) of the Hindu Marriage Act, 1955 in pursuance to the observation made by the Hon'ble Apex Court in the case of Savitri Pandey Vs. Prem Chandra Pandey reported in (2002) 2 SCC 73, therefore, the appeal will be said to be filed within the period of limitation hence there was no need for the Office to point out the issue of limitation.

3. We have heard the learned counsel for the appellant, perused the office note wherein the delay of 27 days has been pointed out as per the calculation made by the

Office in back side of the Vakalatnama..

4. According to the learned counsel for the petitioner the impugned judgment is dated 30.11.2024 and as such the appeal ought to have been filed up to 29th November, 2024 and it has been filed on 19.11.2024, which is within the prescribed period as prescribed under Section 28(4) of the Hindu Marriage Act 1955, hence the present appeal is within limitation.

5. Such submission has been made on the strength of the judgment passed by the Division Bench of this Court in the case of Dr. Pankaj Kumar Vs. Prerna (F.A. 49 of 2019) wherein the period of limitation has been held to be 90 days in view of the amendment incorporated under Section 28 (4) of Hindu Marriage Act 1955.

6. In the backdrop of the aforesaid fact and the contention of the learned counsel for the appellant the seminal question involved herein that what should be the period of limitation for filing an appeal under section 19 of the Family Courts' Act from a judgment and order passed by the Family Court in a suit instituted under the provisions of Hindu Marriage Act, 1955 i.e. 30 days in terms of, Section. 19(3) of the Act of 1984 or 90 days in terms of amended Section 28(4) of the Hindu Marriage Act, 1955.

7. The Section 19(3) of the Family Act 1984 provides to file an appeal within the period of 30 days. Further, in view of the judgment passed in the case of Savitri Pandey Vs. Prem Chandra Pandey (supra), the amendment has been carried out in Section 28(4) of the Hindu Marriage Act by enhancing the period of limitation to be of 90 days for filing of the appeal. For ready reference the relevant paragraph of the aforesaid judgment is being quoted hereinbelow which reads as under:

"19. At this stage we would like to observe that the period of limitation prescribed for filing the appeal under Section 28(4) is apparently inadequate which facilitates the frustration of the marriages by the unscrupulous litigant spouses. In a vast country like ours, the powers under the Act are generally exercisable by the District Court and the first appeal has to be filed in the High Court. The distance, the geographical conditions, the financial position of the parties and the time required for filing a regular appeal, if kept in mind, would certainly show that the period of 30 days prescribed for filing the appeal is insufficient and inadequate. In the absence of appeal, the other party can solemnise the marriage and attempt to frustrate the appeal right of the other side as appears to have been done in the instant case. We are of the opinion that a minimum period of 90 days may be prescribed for filing the appeal against any judgment and decree under the Act and any marriage solemnised during the aforesaid period be deemed to be void. Appropriate legislation is required to be made in this regard. We direct the Registry that the copy of this judgment may be forwarded to the Ministry of Law and Justice for such action as it may deem fit to take in this behalf.

8. It needs to refer herein that the Hindu Marriage Act 1955 incorporate a provision under Section 28 providing therein the forum to file an appeal as also having with the period of limitation to prefer an appeal, for ready reference, Section 28 is being referred herein which reads as under:

28. Appeals from decrees and orders.--(1) All decrees made by the court in any proceeding under this Act shall, subject to the provisions of sub-section (3), be appealable as decrees of the court made in the exercise of its original civil jurisdiction, and every such appeal shall lie to the court to which appeals ordinarily lie from the decisions of the court given in the exercise of its original civil jurisdiction.

(2) Orders made by the court in any proceeding under this Act under section 25 or section 26 shall, subject to the provisions of sub-section (3), be appealable if they are not interim orders, and every such appeal shall lie to the court to which appeals ordinarily lie from the decisions of the court given in exercise of its original civil jurisdiction.

(3) There shall be no appeal under this section on the subject of costs only.

(4) Every appeal under this section shall be preferred within a [period of ninety days] from the date of the decree or order.

9. The Section 28 (1) and (2) of HMA provides that all decrees and orders (other than interim orders) made by the Court in any proceedings shall be appealable to the Court to which appeals ordinarily lie from the decisions of the Court given in the exercise of its original civil jurisdiction. Section, 28(4) of Act 1955 provides for a period of ninety days for filing the appeal.

10. Thus, it is evident from Section 28 of the Act of 1955 provides for appeals from decrees and orders. Prior to Marriage Laws (Amendment) Act, 2003, section 28(4) provided a period of 30 days only for filing an appeal. The Apex Court taking note of inadequacy of time in preferring an appeal of such nature in the case of Savitri Pandey v. Prem Chandra Pandey (supra), has shown the concern and suggested that the period of filing appeal from the order Family Court should be of 90 days.

11. Accordingly, in the light of observation made by the Hon'ble Apex Court in the case of Savitri Pandey v. Prem Chandra Pandey (supra) the required amendment vide Marriage Laws (Amendment) Act, 2003 has been carried out in the Section 28 (4) of Act 1955 and period of filing of appeal had been extended from 30 days to 90 days.

12. Thus, the amendment has been incorporated under Section 28(4) of the Hindu Marriage Act by virtue of the amendment has been incorporated in Section 39(4) of the Special Marriage Act, 1954 and Section 28(4) of the Hindu Marriage Act, 1955 by enlarging the period of limitation of 30 days to 90 days keeping in view the observation made by the Hon'ble Apex Court in the case of Savitri Pandey v. Prem Chandra Pandey (supra).

13. It requires to refer herein that the Family Courts Act has been enacted on 14th September, 1984. The Objects and reasons behind enactment of Family Courts Act would suggest that reason for constitution of Family Courts is for settlement of family disputes, if possible, by pre-litigation proceedings. For ready reference the statement of object and reasons of the Act 1984 is being quoted as under:

"Statement of Objects and Reasons.--Several associations of women, other organisations and individuals have urged, from time to time, that Family Courts be set up for the settlement of family disputes, where emphasis should be laid on conciliation and achieving socially desirable results and adherence to rigid rules of procedure and evidence should be eliminated. The Law Commission in its 59th report (1974) had also stressed that in dealing with disputes concerning the family the court ought to adopt an approach radically different from that adopted in ordinary civil proceedings and that it should make reasonable efforts at settlement before the commencement of the trial. The Code of Civil Procedure was amended in 1976 to provide for a special procedure to be adopted in suits or proceedings relating to matters concerning the family. However, not much use has been made by the courts in adopting this conciliatory procedure and the courts continue to deal with family disputes in the same manner as other civil matters and the same adversary approach prevails. The need was, therefore, felt, in the public interest, to establish Family Courts for speedy settlement of family disputes."

14. The Act 1984 contains a provision providing a forum for prefer an appeal under Section 19 which also contains a period of limitation under Section 19(3) thereof under which the 30 days period has been provided to prefer an appeal. For ready reference same is being quoted as under:

"19. Appeal.-- (1) Save as provided in sub-section (2) and notwithstanding anything contained in the Code of Civil Procedure, 1908 (5 of 1908) or in the Code of Criminal Procedure, 1973 (2 of 1974) or in any other law, an appeal shall lie from every judgment or order, not being an interlocutory order, of a Family Court to the High Court both on facts and on law.

(2) No appeal shall lie from a decree or order passed by the Family Court with the consent of the parties or from an order passed under Chapter IX of the Code of Criminal Procedure, 1973 (2 of 1974): Provided that nothing in this sub-section shall apply to any appeal pending before a High Court or any order passed under Chapter IX of the Code of Criminal Procedure, 1973 (2 of 1974) before the commencement of the Family Courts (Amendment) Act, 1991 (59 of 1991). (3) Every appeal under this section shall be preferred within a period of thirty days from the date of the judgment or order of a Family Court.

(4) The High Court may, of its own motion or otherwise, call for and examine the record of any proceeding in which the Family Court situate within its jurisdiction passed an order under Chapter IX of the Code of Criminal Procedure, 1973 (2 of

1974) for the purpose of satisfying itself as to the correctness, legality or propriety of the order, not being an interlocutory order, and as to the regularity of such proceeding. (5) Except as aforesaid, no appeal or revision shall lie to any court from any judgment, order or decree of a Family Court. (6) An appeal preferred under sub-section (1) shall be heard by a Bench consisting of two or more Judges

15. Section 19 of the Family Courts Act provides for an appeal from every judgment or order, not being an interlocutory order, of a Family Court to the High Court both on facts and on law. Section 19(6) provides that the appeal shall be heard by a Bench consisting of two or more judges. Section 19(3) prescribes a period of thirty days for filing an appeal.

16. At this juncture it would apt refer section 20 of the Act 1984 wherein overriding effect of the Act has been stipulated, for ready reference same is being quoted as under:

"20. Act to have overriding effect.--The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force or in any instrument having effect by virtue of any law other than this Act."

17. It is evident that Section 20 of the Family Courts Act lays down that the provisions of the Family Courts Act would override any inconsistent provision contained in any other law for the time being in force.

18. It needs to refer herein that in light of the observation made by the Hon'ble Apex Court in Savitri Pandey's case an amendment has been carried out in Section 28(4) of Act 1955 and also in Section 39(4) of the Special Marriage Act 1956 enhancing the period of limitation from 30 days to 90 days but no amendment has been incorporated in the Family Courts Act 1984 regarding the period of limitation.

19. In the backdrop of the aforesaid settled position of law this Court has gone through the judgment passed by the Co-ordinate Division Bench of this Court in the case of Dr. Pankaj Kumar v. Prerna, 2020 SCC OnLine Jhar 1652.

20. The question has been taken into consideration by the Co-ordinate Division Bench that "what is the period of limitation for filing an appeal under Section 19 of the Family Courts Act from a judgment and order passed by the Family Court in a suit instituted under the provisions of Hindu Marriage Act, 1955 i.e., 30 days in terms of Section 19(3) of the Act of 1984 or 90 days in terms of amended Section 28 of Hindu Marriage Act, 1955 by the Marriage Laws (Amendment Act), 2003?

21. It is evident from the judgment that the Co-ordinate Division Bench has acceded with the principle laid down by the Full Bench decision of the Bombay High Court in Shivram Dodanna v. Sharmila Shivram Shetty [2017 (1) Mh.L.J. 281] wherein it has been held that the Hindu Marriage Act being a special legislation, the provisions governing the period of limitation for preferring an appeal arising out of the decision of the Family Court under the Hindu marriage Act, 1955 should be

governed by the larger period of limitation of 90 days prescribed under Section 28(4) of Act 1955 thereof.

22. Thus, the co-ordinate Bench of this Court while acceded with the view of Full Bench judgment of the Bombay High Court passed, has observed that considering the scheme of both the enactments and the purpose behind amending the provisions of section 28(4) of the Act of 1955, it would not be appropriate to apply different period of limitation, one in case of orders passed by the Family Courts and in another by the regular Civil Courts.

23. It needs to refer herein that the learned counsel has contested the defect No. 2 pertaining to the issue of limitation but in all fairness, she has also placed the judgment rendered by the Hon'ble Apex Court in the case of Arunoday Singh V. Lee Anne Elton reported in 2021 SCC OnLine SC 3285, wherein the issue of limitation to file an appeal under the Special Marriage Act or the Hindu Marriage Act has been dealt with in light of the provision of Section 19 of the Family Courts Act.

24. We have gone through the judgment passed by the Hon'ble Apex Court in the case of Arunoday Singh V. Lee Anne Elton (supra) which was being pronounced on 23rd July, 2021 which is after passing of the judgment dated 16.12.2020 passed by Co-ordinate Bench of this Court in Dr. Pankaj Kumar V. Prerna (supra).

25. We have gone through the factual aspect of the Arunoday Singh V. Lee Anne Elton(supra) which is a case arisen from Madhya Pradesh High Court. Vide an order dated 9th March 2021 the Jabalpur Bench of the High Court of Madhya Pradesh while allowing an interlocutory application being an application for condonation of the delay has condoned the delay in filing the First Appeal under Section 19 of the Family Courts Act, 1984, read with Section 39 of the Special Marriage Act, 1954.

26. It is evident from the issue framed in the case of Arunoday Singh V. Lee Anne Elton (supra) as to whether the delay in filing an appeal from a decree of divorce granted by the Family court under the Special Marriage Act, 1954 can be condoned under Section 5 of the Limitation Act, 1963.

27. The aforesaid issue has been answered by holding that Section 5 of the Limitation Act would be applicable. The Hon'ble Apex Court has further observed that an appeal under section 19 of the Family Courts Act has to be filed within thirty days even though it provides for a shorter period of limitation than the Special Marriage Act and the non-obstante provision of Section 20 of the Family Courts Act gives overriding effect to the Family Courts Act and thus the period of limitation for filing an appeal from a judgment and order of a Family Court constituted under the Family Courts Act would be 30 days and not 90 days. For ready reference the relevant paragraph of the aforesaid Judgment is being quoted as under:

"16. However, as observed above, Section 19(3) of the Family Courts Act requires every appeal from a judgment or order of the Family Court to be filed within 30 days. The provisions of the Family Court Act have effect notwithstanding anything inconsistent contained in any other law for the time being in force.

17. Section 19(3) of the Family Courts Act provides a shorter period of limitation than Section 39(4) of the Special Marriage Act, 1954 or Article 116 of the Schedule to the Limitation Act, 1963. There is an inconsistency between the period of limitation for filing an appeal prescribed by the Family courts Act and the Special Marriage Act, as also the Limitation Act.

18. By reason of the non-obstante provision of Section 20 of the Family Courts Act giving overriding effect to the Family Courts Act, the period of limitation for filing an appeal from a judgment and order of a Family Court constituted under the Family Courts Act would be 30 days and not 90 days. The High Court thus found that the Appeal was delayed, even though the Appeal was filed well within 90 days."

28. It needs to refer herein that a Division Bench of the Delhi High Court in the case of Pallavi Mohan alias Pallavi Menon Vs. Raghu Menon 2023 SCC OnLine Del 5621 has considered as to what would be the period of limitation in filing in appeal whether it is 90 days as provided under Section 28 (4) under the Hindu Marriage Act or 30 days as provided under Section 19(3) of the Family Courts Act.

29. The Delhi High Court while taking the ratio of the judgment rendered by the Hon'ble Apex Court in the case of Arunoday Singh vs. Lee Anne Elton (supra), has observed that the period of limitation for filing an appeal against a judgment or order of the Family Court is thirty days. However, for sufficient cause to be shown, the delay in filing can be condoned under Section 5 of the Limitation Act. 1963.

30. At this juncture, it would be apt to refer herein that the Family Courts Act is the special enactment providing forum to prefer an appeal pertaining to the family disputes including the issue of guardianship and wards.

31. Section 20 of Act 1984, thereof assumes importance as per which the provision as contained under Family Courts Act has been made to be overriding effect if anything inconsistent therewith contain in any other law for the time being in force, the provision as contained under the Family Courts Act will have the effect.

32. There is inconsistency so far as period of limitation is concerned as provided under Section 28(4) of the Hindu Marriage Act, 1955 or under Section 39(4) of the Family Courts Act vis-vis Section 19(3) of the Act 1984.

33. The question therefore is that if no amendment has been incorporated under Section 19(3) of the Family Courts Act, then it will have the prevailing effect in view of the specific provision incorporated by way of Section 20 of the Family Courts Act.

34. The said aspect of the matter has been taken into consideration by the Hon'ble Apex Court in the case of Arunoday Singh V. Lee Anne Elton (supra), wherein also the period of limitation of 30 days as provided under Section 19(3) of the Family Courts Act has been accepted to be the period of

limitation to file an appeal.

35. The Hon'ble Apex Court in the said case has made an observation that the appeal was filed by the respondent within 90 days, as per the period of limitation prescribed in the Special Marriage Act which the Hon'ble Apex Court has considered to be on the mistaken belief considering the aforesaid mistaken belief to be the bona fide reason said to be sufficient cause for delay, hence condoning the delay.

36. We are conscious with the settled position of law that if any judgment has been passed by the Court having the same coram, the matter is to be referred to the larger Bench. But we are not questioning the said judgment passed by the co-ordinate Bench in the case of Dr. Pankaj Kumar V. Prerna (First Appeal No. 49 of 2019) in any way rather we on the basis of the judgment passed by the Hon'ble Apex Court in the case of Arunoday Singh V. Lee Anne Elton (supra) which is having binding effect under Article 141 of the Constitution of India wherein the period of limitation has been dealt to be 30 days as stipulated in Section 19(3) of the Family Courts Act, 1984, have appreciated the present issue.

37. Further, the judgment passed by the Co-ordinate Division Bench is prior to the judgment passed by the Hon'ble Apex Court in the case of Arunoday Singh V. Lee Anne Elton (supra) which was pronounced on 23.07.2021 while the Division Bench of this Court has passed an order on 16.12.2020.

38. This Court therefore is of the view that the period of limitation for filing an appeal as provided under Section 19(3) of the Family Courts Act which prescribe the period of 30 days is to be applicable in filing the appeal.

39. The Office has properly calculated the period of limitation by arriving to the conclusion of filing the appeal in pursuance to the provision as contained under Section 19(3) of the Family Courts Act but the same has been challenged by the learned counsel for the appellant on the pretext of Section 28(4) of the Hindu Marriage Act, 1955 coupled with the judgment passed by the Co-ordinate Division Bench of this Court dated 16.12.2020 in Pankaj Kumar V. Prerna.

40. But in view of the judgment passed by the Hon'ble Apex Court in the case of Arunoday Singh V. Lee Anne Elton (supra) and having the overriding effect in view of Section 20 of the Family Courts Act it is the provision as contained under Section 19(3) prescribing the period of limitation of 30 days in filing the appeal pertaining to the matrimonial disputes arising out of the Hindu Marriage Act, 1955 or the Special Marriage Act or any other decree passed by the Family Courts is required to file within the period of 30 days.

41. Thus, on the basis of discussion made hereinabove the defect no.2 as pointed out by the learned registry regarding alleged delay of 27 days in the filing of instant appeal is hereby sustained.

42. Accordingly, the I.A. No. 9289 of 2025 is hereby disposed of. I.A. No. 13078 of 2024:

43. However, so far as the issue of condonation of the delay is concerned, the same has also been held by the Hon'ble Apex Court in the case of Arunoday Singh V. Lee Anne Elton (supra) by applying the provision of Section 5 of the Limitation Act depending upon the sufficient cause, if shown by the party concerned.

44. Therefore, the office note regarding the issue of limitation is hereby sustained so far as the issue of limitation is concerned, it appears that on misconception, the instant appeal has been filed beyond the period of 30 days.

45. As such, considering the same, the delay in filing the instant appeal is hereby condoned.

46. Accordingly, the I.A. No. 13078 of 2024 is hereby allowed. F.A. No. 250 of 2025:

47. Heard.

48. Admit.

49. Call for the Trial Court Records.

(Sujit Narayan Prasad, J.) (Rajesh Kumar, J.) Samarth/ A.F.R.